

Vernon's Texas Statutes and Codes Annotated

Occupations Code (Refs & Annos)

Title 12. Practices and Trades Related to Water, Health, and Safety (Refs & Annos)

Subtitle B. Practices Related to Health and Safety

Chapter 1958. Mold Assessors and Remediators (Refs & Annos)

Subchapter A. General Provisions

V.T.C.A., Occupations Code § 1958.001

§ 1958.001. Definitions

Currentness

In this chapter:

(1) “Advisory board” means the Mold Assessment and Remediation Advisory Board.

(1-a) “Commission” means the Texas Commission of Licensing and Regulation.

(1-b) “Department” means the Texas Department of Licensing and Regulation.

(2) “Executive director” means the executive director of the department.

(3) “License” means a license issued under this chapter.

(4) "Mold" means any living or dead fungi or related products or parts, including spores and hyphae.

(5) “Mold assessment” means:

(A) an inspection, investigation, or survey of a dwelling or other structure to provide the owner or occupant with information regarding the presence, identification, or evaluation of mold;

(B) the development of a mold management plan or remediation protocol; or

(C) the collection or analysis of a mold sample.

(6) “Mold remediation” means the removal, cleaning, sanitizing, demolition, or other treatment, including preventive activities, of mold or mold-contaminated matter that was not purposely grown at that location.

Credits

Added by Acts 2003, 78th Leg., ch. 205, § 1, eff. Sept. 1, 2003. Amended by Acts 2015, 84th Leg., ch. 1 (S.B. 219), § 5.292, eff. April 2, 2015; Acts 2015, 84th Leg., ch. 838 (S.B. 202), § 1.278, eff. Sept. 1, 2017; Acts 2023, 88th Leg., ch. 282 (S.B. 1213), § 1, eff. May 29, 2023; Acts 2025, 89th Leg., ch. 204 (H.B. 1620), § 22.001(33), eff. Sept. 1, 2025; Acts 2025, 89th Leg., ch. 493 (S.B. 1255), § 1, eff. Sept. 1, 2025.

V. T. C. A., Occupations Code § 1958.001, TX OCC § 1958.001

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Subchapter A. General Provisions

V.T.C.A., Occupations Code § 1958.002

§ 1958.002. Scope of Authority

Currentness

(a) This chapter applies only to the regulation of mold-related activities that affect indoor air quality, including a mold-related activity performed by a third party for compensation at a property owned or operated by a governmental entity.

(b) This chapter does not apply to:

(1) the following activities when not conducted for the purpose of mold assessment or mold remediation:

(A) routine cleaning;

(B) the diagnosis, repair, cleaning, or replacement of plumbing, heating, ventilation, air conditioning, electrical, or air duct systems or appliances;

(C) commercial or residential real estate inspections; and

(D) the incidental discovery or emergency containment of potential mold contamination during the conduct or performance of services listed in this subsection;

- (2) the repair, replacement, or cleaning of construction materials during the building phase of the construction of a structure;
- (3) the standard performance of custodial activities for, preventive maintenance of, and the routine assessment of property owned or operated by a governmental entity;
- (4) a pest control inspection conducted by a person regulated under Chapter 1951; or
- (5) demolition of a structure after a fire or other disaster.

Credits

Added by [Acts 2003, 78th Leg., ch. 205, § 1, eff. Sept. 1, 2003](#). Amended by [Acts 2025, 89th Leg., ch. 493 \(S.B. 1255\), § 2, eff. Sept. 1, 2025](#).

V. T. C. A., Occupations Code § 1958.002, TX OCC § 1958.002

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Subchapter B. Powers and Duties

V.T.C.A., Occupations Code § 1958.051

§ 1958.051. General Powers and Duties

Currentness

The executive director shall administer and enforce this chapter to protect the public from the adverse health effects of mold.

Credits

Added by Acts 2003, 78th Leg., ch. 205, § 1, eff. Sept. 1, 2003. Amended by Acts 2015, 84th Leg., ch. 838 (S.B. 202), § 1.279, eff. Sept. 1, 2017.

V. T. C. A., Occupations Code § 1958.051, TX OCC § 1958.051

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Subchapter B. Powers and Duties

V.T.C.A., Occupations Code § 1958.054

§ 1958.054. Rules Regarding Performance Standards and Work Practices

Currentness

The commission by rule shall establish minimum performance standards and work practices for conducting a mold assessment or mold remediation in this state.

Credits

Added by Acts 2003, 78th Leg., ch. 205, § 1, eff. Sept. 1, 2003. Amended by Acts 2015, 84th Leg., ch. 1 (S.B. 219), § 5.294, eff. April 2, 2015; Acts 2015, 84th Leg., ch. 838 (S.B. 202), § 1.280, eff. Sept. 1, 2017.

V. T. C. A., Occupations Code § 1958.054, TX OCC § 1958.054

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Subchapter C. License and Registration Requirements

V.T.C.A., Occupations Code § 1958.101

§ 1958.101. License Required; Rules

Currentness

(a) A person may not engage in:

(1) mold assessment unless the person holds a mold assessment license; or

(2) mold remediation unless the person holds a mold remediation license.

(b) The commission shall adopt rules regarding:

(1) the scope of mold-related work for which a license is required, including the supervision of employees or other persons by license holders; and

(2) renewal requirements for a license issued under this chapter.

Credits

Added by Acts 2003, 78th Leg., ch. 205, § 1, eff. Sept. 1, 2003. Amended by Acts 2015, 84th Leg., ch. 1 (S.B. 219), § 5.299, eff. April 2, 2015; Acts 2015, 84th Leg., ch. 838 (S.B. 202), § 1.284, eff. Sept. 1, 2017.

V. T. C. A., Occupations Code § 1958.101, TX OCC § 1958.101

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Subchapter D. Practice by License Holder

V.T.C.A., Occupations Code § 1958.152

§ 1958.152. Remediation Work Plan

Currentness

(a) A license holder who intends to perform mold remediation shall prepare a work plan providing instructions for the remediation efforts to be performed for the mold remediation project. The license holder shall provide the work plan to the client before the mold remediation begins.

(b) The license holder shall maintain a copy of the work plan at the job site where the remediation is being performed.

Credits

Added by [Acts 2003, 78th Leg., ch. 205, § 1, eff. Sept. 1, 2003](#).

V. T. C. A., Occupations Code § 1958.152, TX OCC § 1958.152

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Subchapter D. Practice by License Holder

V.T.C.A., Occupations Code § 1958.153

§ 1958.153. Notice of Project

Currentness

(a) Except as provided by Subsection (b), not later than the fifth day before the date on which a license holder starts mold remediation at a property, the license holder shall notify the department in a manner prescribed by the department about the project.

(b) In an emergency, notice to the department under Subsection (a) must be made not later than the next business day after the license holder identifies the emergency. For purposes of this subsection, an emergency exists if a delay in mold remediation services in response to a water damage occurrence would increase mold contamination.

(c) The commission shall adopt rules to implement this section, including rules describing the information that must be provided in the notice.

(d) The department shall develop a mechanism by which a license holder may notify the department of an emergency as required by Subsection (b).

Credits

Added by Acts 2003, 78th Leg., ch. 205, § 1, eff. Sept. 1, 2003. Amended by Acts 2015, 84th Leg., ch. 1 (S.B. 219), § 5.305, eff. April 2, 2015; Acts 2015, 84th Leg., ch. 838 (S.B. 202), § 1.288, eff. Sept. 1, 2017; Acts 2017, 85th Leg., ch. 1105 (H.B. 4007), § 11.003, eff. Sept. 1, 2017.

V. T. C. A., Occupations Code § 1958.153, TX OCC § 1958.153

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Subchapter D. Practice by License Holder

V.T.C.A., Occupations Code § 1958.154

§ 1958.154. Certificate of Mold Remediation; Duty of Property Owner

Currentness

(a) Not later than the 10th day after the date on which a license holder completes mold remediation at a property, the license holder shall provide a certificate of mold remediation to the property owner. The certificate must include a statement by a mold assessment license holder that, based on visual, procedural, and analytical evaluation, the mold contamination identified for the project has been remediated as outlined in the mold management plan or remediation protocol. If the mold assessment license holder determines that the underlying cause of the mold has been remediated so that it is reasonably certain that the mold will not return from that remediated cause, the mold assessment license holder shall indicate on the certificate that the underlying cause of the mold has been remediated.

(b) If a property owner sells property, the property owner shall provide to the buyer a copy of each certificate issued for the property under this section during the five years preceding the date the property owner sells the property.

(c) The commission shall adopt rules to implement this section, other than rules described by Subsection (d).

(d) The commissioner of insurance shall adopt rules describing the information that must be provided in the certificate of mold remediation. In adopting the rules, the commissioner shall design the certificate as necessary to comply with any requirements imposed under Subchapter G, Chapter 544, Insurance Code.¹

Credits

Added by Acts 2003, 78th Leg., ch. 205, § 1, eff. Sept. 1, 2003. Amended by Acts 2005, 79th Leg., ch. 149, § 2, eff. May 24, 2005; Acts 2005, 79th Leg., ch. 728, § 11.153, eff. Sept. 1, 2005; Acts 2015, 84th Leg., ch. 1 (S.B. 219), § 5.306, eff. April 2, 2015; Acts 2015, 84th Leg., ch. 838 (S.B. 202), § 1.289, eff. Sept. 1, 2017.

Footnotes

1 V.T.C.A., Insurance Code § 544.301 et seq.

V. T. C. A., Occupations Code § 1958.154, TX OCC § 1958.154

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Subchapter D. Practice by License Holder

V.T.C.A., Occupations Code § 1958.156

§ 1958.156. Record Requirements; Duties of Mold Remediators

Currentness

- (a) A mold remediator shall maintain a record regarding each mold remediation performed for at least three years after the date of completion of the mold remediation on a property.
- (b) The mold remediator shall make the record available for inspection by the department or any law enforcement entity.
- (c) The record must contain:
 - (1) photographs of the scene of the mold remediation taken before and after the remediation;
 - (2) the written contract between the mold remediator or any other party regarding the mold remediation;
 - (3) all invoices issued regarding the mold remediation; and
 - (4) any other material required by the department.
- (d) Not later than the 10th day after the date of completion of a mold remediation, the mold remediator license holder shall provide the property owner with copies of all photographs required by this section.

Credits

Added by [Acts 2003, 78th Leg., ch. 205, § 1, eff. Sept. 1, 2003](#). Amended by [Acts 2017, 85th Leg., ch. 1105 \(H.B. 4007\), § 11.004, eff. Sept. 1, 2017](#).

V. T. C. A., Occupations Code § 1958.156, TX OCC § 1958.156

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